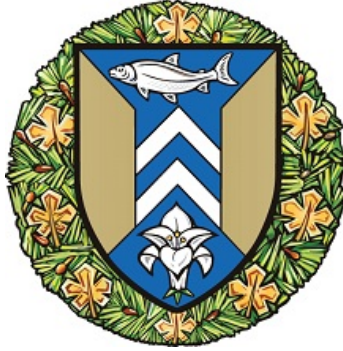




REGULAR MEETING OF CITY COUNCIL

MINUTES

Monday, December 2, 2024

5:00 pm

Council Chambers and Video Conference

Present: Mayor M. Shoemaker, Councillor S. Hollingsworth, Councillor S. Spina, Councillor L. Dufour, Councillor L. Vezeau-Allen, Councillor A. Caputo, Councillor R. Zagordo, Councillor M. Bruni, Councillor S. Kinach, Councillor C. Gardi, Councillor M. Scott

Officials: T. Vair, R. Tyczinski, K. Fields, S. Schell, P. Johnson, S. Hamilton Beach, N. Ottolino, B. Lamming, N. Maione, P. Tonazzo, D. Perri, C. Rumiel, T. Vecchio, M. Zuppa, V. McLeod, R. Van Staveren

1. Land Acknowledgement

2. Adoption of Minutes

Moved by: Councillor R. Zagordo

Seconded by: Councillor S. Hollingsworth

Resolved that the Minutes of the Regular Council Meeting of November 12, 2024, Special Council Meeting of November 18, 2024, Budget Meeting of November 18, 2024, and Special Meeting of November 26, 2024 be approved.

Carried

3. Questions and Information Arising Out of the Minutes and not Otherwise on the Agenda

4. Declaration of Pecuniary Interest

4.1 Mayor M. Shoemaker – Sale of Part 330 Industrial Park Crescent

Proposed purchaser is a client of law firm.

4.2 Mayor M. Shoemaker – By-law 2024-176 (Property Sale) Part of 330 Industrial Park Crescent First General SSM Rico Briglio

Proposed purchaser is a client of law firm.

4.3 Councillor L. Vezeau-Allen – Property Sale – 149 Gore Street

Board President and Founder of Grocer 4 Good (147 Gore Street)

4.4 Councillor L. Vezeau-Allen – By-law 2024-186 (Property Sale) 149 Gore Street – Carmen Muto Plumbing & Heating Inc.

Board President and Founder of Grocer 4 Good (147 Gore Street)

4.5 Councillor L. Dufour – Amending Parking Lot Lease with Sault Ste. Marie Housing Corporation

Employee of District of Sault Ste. Marie Social Services Administration Board

4.6 Councillor L. Dufour – By-law 2024-184 (Agreement Amendment) 525 Albert Street East Parking Lot

Employee of District of Sault Ste. Marie Social Services Administration Board

4.7 Councillor L. Dufour – Supra Box Key Agreement – Fire Services and EMS

Employee of District of Sault Ste. Marie Social Services Administration Board

4.8 Councillor L. Dufour – Land Ambulance Maintenance Agreement Renewal

Employee of District of Sault Ste. Marie Social Services Administration Board

4.9 Councillor L. Dufour – By-law 2024-182 (Agreement) Fire Services Supra Boxes

Employee of District of Sault Ste. Marie Social Services Administration Board

4.10 Councillor L. Dufour – By-law 2024-183 (Agreement) Land Ambulance Maintenance

Employee of District of Sault Ste. Marie Social Services Administration Board

5. Approve Agenda as Presented

Moved by: Councillor R. Zagordo

Seconded by: Councillor S. Hollingsworth

Resolved that the Agenda for December 2, 2024 City Council Meeting as presented be approved.

Carried

6. Presentations

7. Communications and Routine Reports of City Departments, Boards and Committees – Consent Agenda

Moved by: Councillor A. Caputo

Seconded by: Councillor S. Spina

Resolved that all the items listed under date December 2, 2024 – Agenda item 7 – Consent Agenda save and except Agenda items 7.13, 7.14 and 7.16 be approved as recommended.

Carried

7.1 2025 Borrowing By-law

A report of the Chief Financial Officer/Treasurer was received by Council.

The relevant By-law 2024-169 is listed under item 12 of the Minutes.

7.2 RFP Engineering Services – Gateway Property Environmental Site Assessment

A report of the Manager of Purchasing was received by Council.

The relevant By-law 2024-175 is listed under item 12 of the Minutes.

7.3 RFP for Comprehensive Review of Conventional Transit Operation

The report of the Manager of Purchasing was received by Council.

Moved by: Councillor R. Zagordo

Seconded by: Councillor S. Hollingsworth

Resolved that the report of the Manager of Purchasing dated December 2, 2024 concerning Comprehensive Review of the Conventional Transit Operation be received and that the proposal submitted by WSP Canada Inc. be awarded in the amount of \$156,663.56 plus HST.

Carried

7.4 RFP Engineering Services – Fourth Line Culvert Replacement

The report of the Manager of Purchasing was received by Council.

The relevant By-law 2024-187 is listed under item 12 of the Minutes.

7.5 RFP for Wood Waste Grinding

The report of the Manager of Purchasing was received by Council.

Moved by: Councillor A. Caputo

Seconded by: Councillor S. Spina

Resolved that the report of the Manager of Purchasing dated December 2, 2024 concerning RFP for Wood Waste Grinding be received and that the services be awarded to And-Son Contracting and Gravel Ent. Inc. at the rates quoted commencing January 1, 2025 for three years, with option to extend up to two additional years by mutual agreement.

Carried

7.6 Change Order for Supply and Install Fencing – Transit

The report of the Manager of Purchasing was received by Council.

Moved by: Councillor R. Zagordo

Seconded by: Councillor S. Hollingsworth

Resolved that the report of the Manager of Purchasing dated December 2, 2024 concerning Scope of Work Change Order submitted by GreenTerra for additional fees for supply and install of fencing, as required by the Transit Division be received and that the remaining change value of \$17,999 for a revised total of \$142,999 (plus HST) be approved.

Carried

7.7 Designated Heritage Property Tax Rebates 2024

The report of the Manager of Recreation and Culture was received by Council.

Moved by: Councillor R. Zagordo

Seconded by: Councillor S. Hollingsworth

Resolved that the report of the Manager of Recreation and Culture dated December 2, 2024 concerning Designated Heritage Property Tax Rebates 2024 be received and that the designated heritage property tax rebates for the 2023 tax year be approved and paid to the qualified owners of designated heritage properties enrolled in the program as follows:

- 69 Church Street – Provincial Air Hangar
- 875 Queen Street East – Insect Pathology Lab
- 864 Queen Street – Algonquin Hotel
- 119 Woodward Avenue
- 10 Kensington Terrace – Unit #1
- 10 Kensington Terrace – Unit #2
- 10 Kensington Terrace – Unit #3
- 115 Upton Road – 1902 Family Residence
- 193 Pim Street Wellington Square Townhouses
- 36 Herrick Street
- 358-366 Queen Street East – Barnes-Fawcett Blocks
- 242-246 Queen Street East – Hussey Block

- 83 Huron Street – Machine Shop
- 1048 Queen Street – Eastbourne
- 54 Summit Avenue

Carried

7.8 Ontario Heritage Act Part IV Designation of 99 Huron Street – The Yard Locker

The report of the Manager of Recreation and Culture was received by Council.

Moved by: Councillor R. Zagordo

Seconded by: Councillor S. Spina

Resolved that the report of the Manager of Recreation and Culture dated December 2, 2024 concerning *Ontario Heritage Act* Part IV Designation of 99 Huron Street – The Yard Locker be received and that the recommendation of the Sault Ste. Marie Municipal Heritage Committee to designate 99 Huron Street, The Yard Locker, under Part IV of the *Ontario Heritage Act* be approved.

Carried

7.9 Community Development Fund – Green Initiatives Program Applications 2024 Q4 Intake

The report of the Sustainability Coordinator was received by Council.

Moved by: Councillor A. Caputo

Seconded by: Councillor S. Spina

Resolved that the report of the Sustainability Coordinator dated December 2, 2024 concerning Community Development Fund – Green Initiatives Program Applications 2024 Q4 Intake be received and that the recommendations of the Environmental Sustainability Committee to support the four projects as follows be approved:

- Algoma University Invasive Species Sign Project – \$2,476.23
- Sault Climate Hub White Pines Little Forest and Eastview Public School Outdoor Laboratory Project – \$11,233.97

Carried

7.10 Enbridge Municipal Climate Action Incentive

The report of the Sustainability Coordinator was received by Council.

Moved by: Councillor R. Zagordo

Seconded by: Councillor S. Hollingsworth

Resolved that the report of the Sustainability Coordinator dated December 2, 2024, concerning Enbridge Municipal Climate Action Offer Incentive Transfer to Community Development Fund

(CDF) Green Initiatives Program be received and that future incentives from this fund continue to be transferred to this reserve.

Carried

7.11 Advisory Services Engineering Agreement

The report of the Manager of Development and Environmental Engineering was received by Council.

The relevant By-law 2024-181 is listed under item 12 of the Minutes.

7.12 Batchewana First Nation Rankin Reserve Fire Protection Agreement 2025-2029

The report of the Fire Chief was received by Council.

The relevant By-law 2024-178 is listed under item 12 of the Minutes.

7.15 Surplus Property – 72 Victoria Street

The report of the Assistant City Solicitor/Senior Litigation Counsel was received by Council.

The relevant By-law 2024-177 is listed under item 12 of the Minutes.

7.17 More Homes Built Faster Act

Correspondence from the Minister of Municipal Affairs and Housing was received by Council.

7.13 Supra Box Key Agreement – Fire Services and EMS

Councillor L. Dufour declared a conflict on this item. (Employee of District of Sault Ste. Marie Social Services Administration Board)

A report of the Fire Chief was received by Council.

The relevant By-law 2024-182 is listed under item 12 of the Minutes.

7.14 Land Ambulance Maintenance Agreement Renewal

Councillor L. Dufour declared a conflict on this item. (Employee of District of Sault Ste. Marie Social Services Administration Board)

The report of the Fire Chief was received by Council.

The relevant By-law 2024-183 is listed under item 12 of the Minutes.

7.16 Amending Parking Lot Lease with Sault Ste. Marie Housing Corporation

Councillor L. Dufour declared a conflict on this item. (Employee of District of Sault Ste. Marie Social Services Administration Board)

The report of the Assistant City Solicitor/Senior Litigation Counsel was received by Council.

The relevant By-law 2024-184 is listed under Item 12 of the Minutes.

8. Reports of City Departments, Boards and Committees

8.1 Administration

8.2 Corporate Services

8.3 Community Development and Enterprise Services

8.4 Public Works and Engineering Services

8.5 Fire Services

8.6 Legal

8.6.1 Sale of Part 330 Industrial Park Crescent

Mayor M. Shoemaker declared a conflict on this item. (Proposed purchaser is a client of law firm.)

The report of the Assistant City Solicitor/Senior Litigation Counsel was received by Council.

The relevant By-law 2024-176 is listed under item 12 of the Minutes.

8.6.2 Property Sale – 149 Gore Street

Councillor L. Vezeau-Allen declared a conflict on this item. (Board President and Founder of Grocer 4 Good (147 Gore Street))

The report of the Assistant City Solicitor/Senior Litigation Counsel was received by Council.

The relevant By-law 2024-186 is listed under item 12 of the Minutes.

8.7 Planning

8.7.1 A-12-24-OP Sackville Road Extension Official Plan Amendment

The report of the Intermediate Planner was received by Council.

Mark Brown (Mary Avenue), Angela Stanghetta (Northridge Road), and Lou Salvalaggio were in attendance to speak against the Application.

Moved by: Councillor A. Caputo

Seconded by: Councillor S. Hollingsworth

Resolved that the report of the Intermediate Planner dated December 2, 2024 concerning A-12-24-OP Amendment – Sackville Road Extension be received and that Council amend the Street Classification map (Schedule D) of the Official Plan in the following manner:

- Amendment 255: re-designate the existing Sackville Road (870 metres) from ‘Urban Local’ to ‘Urban Collector’, and
 - Amendment 256: designate the proposed Sackville Road extension to ‘Urban Collector’
- And that the Legal Department be requested to prepare the necessary by-law to effect the same.

	For	Against	Conflict	Absent
Mayor M. Shoemaker	X			
Councillor S. Hollingsworth	X			
Councillor S. Spina	X			
Councillor L. Dufour	X			
Councillor L. Vezeau-Allen	X			
Councillor A. Caputo	X			
Councillor R. Zagordo	X			
Councillor M. Bruni	X			
Councillor S. Kinach	X			
Councillor C. Gardi	X			
Councillor M. Scott	X			
Results	11	0	0	0
				Carried

8.8 Boards and Committees

8.8.1 Sault Ste. Marie Police Service – 2025 Budget

Chief Hugh Stevenson and John Bruno, Chair were in attendance to address queries from Council further to the November 12, 2024 Council meeting.

9. Unfinished Business, Notice of Motions and Resolutions Placed on Agenda by Members of Council¹

9.1 School Safety Zone Review

Moved by: Councillor A. Caputo

Seconded by: Councillor R. Zagordo

Whereas according to www.saultstemarie.ca there are 42 designated school zones throughout the City, with speed limits set at 40 km/hr and are enforced 24/7; and

Whereas in recent years we have seen an increase in vehicles in school zones due to fewer students relying on the school bus for transportation; and

Whereas the statistics from the 2023 CAA School Zone Safety Survey show that 82% of parents report having seen unsafe driving behaviours in school zones, especially speeding, double parking and stopping at undesignated areas; and

Whereas municipalities are responsible for creating safe school zones and many options to creating a safe school zone, so in many cases school zones can be different in different locations; and

Whereas driver education can be difficult to manage and enforcement of these rules is not always possible; and

Whereas creating a standard for all School Safety Zones within Sault Ste Marie could eliminate driver confusion when entering these zones and create a safer environment for both motorists and pedestrians;

Now Therefore Be It Resolved that staff review all School Safety Zones in Sault Ste Marie to create a plan to standardize these zones;

Further it be resolved that a driver education campaign be brought forward to highlight this plan once it is implemented to increase awareness for motorists and pedestrians of safety standards in these zones.

	For	Against	Conflict	Absent
Mayor M. Shoemaker	X			
Councillor S. Hollingsworth	X			
Councillor S. Spina	X			
Councillor L. Dufour	X			
Councillor L. Vezeau-Allen	X			
Councillor A. Caputo	X			
Councillor R. Zagordo	X			
Councillor M. Bruni	X			
Councillor S. Kinach	X			
Councillor C. Gardi	X			
Councillor M. Scott	X			
Results	11	0	0	0
Carried				

10. Committee of the Whole for the Purpose of Such Matters as are Referred to it by the Council by Resolution

11. Adoption of Report of the Committee of the Whole

12. Consideration and Passing of By-laws

Moved by: Councillor R. Zagordo

Seconded by: Councillor S. Hollingsworth

Resolved that all By-laws under item 12 of the Agenda under date December 2, 2024 save and except By-laws 2024-176, 2024-182, 2024-183, 2024-184, and 2024-186 be approved.

Carried

12.1 By-laws before Council to be passed which do not require more than a simple majority

12.1.1 By-law 2024-168 (Municipal Vacant Home Tax)

Moved by: Councillor A. Caputo

Seconded by: Councillor S. Hollingsworth

Resolved that By-law 2024-168 being a by-law to establish a vacant home tax in the City of Sault Ste. Marie be passed in open Council this 2nd day of December, 2024.

Carried

12.1.2 By-law 2024-169 (Financing) Temporary Borrowing

Moved by: Councillor A. Caputo

Seconded by: Councillor S. Hollingsworth

Resolved that By-law 2024-169 being a by-law to authorize temporary borrowing from time to time to meet current expenditures during the fiscal year ending December 31, 2025 be passed in open Council this 2nd day of December, 2024.

Carried

12.1.3 By-law 2024-175 (Agreement) Gateway Property Environmental Site Assessment - Greenstone Engineering Ltd.

Moved by: Councillor A. Caputo

Seconded by: Councillor S. Hollingsworth

Resolved that By-law 2024-175 being a by-law to authorize the execution of the Agreement between the City and Greenstone Engineering Ltd. for the Environmental Site Assessment (ESA) at the Gateway parcels located at 29 Bay Street, Sault Ste. Marie as required by Community Development and Enterprise Services (CDES) be passed in open Council this 2nd day of December, 2024.

Carried

12.1.4 By-law 2024-177 (Property) Declare Surplus 72 Victoria Street

Moved by: Councillor A. Caputo

Seconded by: Councillor S. Hollingsworth

Resolved that By-Law 2024-177 being a by-law to declare the City owned property legally described as PIN 31613-0191 (LT) LT 165-166 PL 58 AWENGES; SAULT STE. MARIE being civic 72 Victoria Street as surplus to the City's needs and to authorize the disposition of the said property be passed in open Council this 2nd day of December, 2024.

Carried

12.1.5 By-law 2024-178 (Agreement) Batchewana First Nation Rankin Reserve Fire Protection

Moved by: Councillor A. Caputo

Seconded by: Councillor S. Hollingsworth

Resolved that By-law 2024-178 being a by-law to authorize the execution of the Agreement between the City and THE BATCHEWANA FIRST NATION OF OJIBWAYS OF THE RANKIN INDIAN RESERVE 15D for a five (5) year renewal to provide fire protection services for the Batchewana First Nation Rankin Reserve be passed in open Council this 2nd day of December, 2024.

Carried

12.1.6 By-law 2024-181 (Engineering) SSM Wastewater Operations Advisory Services Fee Addendum (AECOM)

Moved by: Councillor A. Caputo

Seconded by: Councillor S. Hollingsworth

Resolved that By-law 2024-181 being a by-law to authorize the execution of the AECOM fee addendum for SSM Wastewater Operations Advisory Services be passed in open Council this 2nd day of December, 2024.

Carried

12.1.9 By-law 2024-187 (Engineering) Fourth Line Culvert Replacement

Moved by: Councillor A. Caputo

Seconded by: Councillor S. Hollingsworth

Resolved that By-law 2024-187 being a by-law to to authorize the execution of the Agreement between the City and Tulloch Engineering Inc. for engineering services for the design, approvals, contract administration and field inspection for the Fourth Line Culvert Replacement be passed in open Council this 2nd day of December, 2024.

Carried

12.1.7 By-law 2024-182 (Agreement) Fire Services Supra Boxes

Councillor L. Dufour declared a conflict on this item. (Employee of District of Sault Ste. Marie Social Services Administration Board)

Moved by: Councillor A. Caputo

Seconded by: Councillor S. Hollingsworth

Resolved that By-law 2024-182 being a by-law to authorize the execution of the Agreement between the City and the District of Sault Ste. Marie Social Services Administration Board to enable Emergency Medical Services (EMS) to continue the use and responsibilities of the Supra Box Key System be passed in open Council this 2nd day of December, 2024.

	For	Against	Conflict	Absent
Mayor M. Shoemaker	X			
Councillor S. Hollingsworth	X			
Councillor S. Spina	X			
Councillor L. Dufour			X	
Councillor L. Vezeau-Allen	X			
Councillor A. Caputo	X			
Councillor R. Zagordo	X			
Councillor M. Bruni	X			
Councillor S. Kinach	X			
Councillor C. Gardi	X			
Councillor M. Scott	X			
Results	10	0	1	0
Carried				

12.1.10 By-law 2024-176 (Property Sale) Part of 330 Industrial Park Crescent First General SSM Rico Briglio

Mayor M. Shoemaker declared a conflict on this item. (Proposed purchaser is a client of law firm.) Councillor M. Scott assumed the Chair as Acting Mayor.

Moved by: Councillor A. Caputo

Seconded by: Councillor S. Hollingsworth

Resolved that By-Law 2024-176 being a by-law to declare the City owned property legally described as Part of PIN 31561-0088(LT) PT LT 1 RCP H744 TARENTORUS PT 1 1R2002 E OF PT 1 1R4685 & E OF PT 4 1R3484 EXCEPT PT 1 1R9652, PT 1 1R4681, PT 1 & 2 1R8856; SAULT STE. MARIE; SUBJECT TO AN EASEMENT OVER PT 1 1R12214 IN FAVOUR OF PT LT 7 RCP H744 PT 1 1R7067 & LT 6 RPC H744 AS IN AL110117 being a portion of 330 Industrial

Park Crescent as surplus to the City's needs and to authorize the disposition of the said property to 1584836 Ontario Inc. operating as First General SSM (Rico Briglio) or as otherwise directed be passed in open Council this 2nd day of December, 2024.

	For	Against	Conflict	Absent
Mayor M. Shoemaker			X	
Councillor S. Hollingsworth	X			
Councillor S. Spina	X			
Councillor L. Dufour	X			
Councillor L. Vezeau-Allen	X			
Councillor A. Caputo	X			
Councillor R. Zagordo	X			
Councillor M. Bruni	X			
Councillor S. Kinach	X			
Councillor C. Gardi	X			
Councillor M. Scott	X			
Results	10	0	1	0
				Carried

Mayor M. Shoemaker resumed the Chair.

12.1.11 By-law 2024-184 (Agreement Amendment) 525 Albert Street East Parking Lot

Councillor L. Dufour declared a conflict on this item. (Employee of District of Sault Ste. Marie Social Services Administration Board)

Moved by: Councillor A. Caputo

Seconded by: Councillor S. Hollingsworth

Resolved that By-law 2024-184 being a by-law to authorize the execution of the Agreement between the City and the Sault Ste. Marie Housing Corporation to add City owned property located at 525 Albert Street East to the original Lease be passed in open Council this 2nd day of December, 2024.

	For	Against	Conflict	Absent
Mayor M. Shoemaker	X			
Councillor S. Hollingsworth	X			
Councillor S. Spina	X			
Councillor L. Dufour			X	
Councillor L. Vezeau-Allen	X			
Councillor A. Caputo	X			
Councillor R. Zagordo	X			
Councillor M. Bruni	X			
Councillor S. Kinach	X			
Councillor C. Gardi	X			
Councillor M. Scott	X			
Results	10	0	1	0
Carried				

12.1.12 By-law 2024-186 (Property Sale) 149 Gore Street – Carmen Muto Plumbing & Heating Inc.

Councillor L. Vezeau-Allen declared a conflict on this item. (Board President and Founder of Grocer 4 Good (147 Gore Street)

Moved by: Councillor A. Caputo

Seconded by: Councillor S. Hollingsworth

Resolved that By-law 2024-186 being a by-law to authorize the sale of surplus property being civic 149 Gore Street, legally described in PIN 31576-0095 (LT) to Carmen Muto Plumbing & Heating Inc. be passed in open Council this 2nd day of December, 2024.

	For	Against	Conflict	Absent
Mayor M. Shoemaker	X			
Councillor S. Hollingsworth	X			
Councillor S. Spina	X			
Councillor L. Dufour	X			
Councillor L. Vezeau-Allen			X	
Councillor A. Caputo	X			
Councillor R. Zagordo	X			
Councillor M. Bruni	X			
Councillor S. Kinach	X			
Councillor C. Gardi	X			
Councillor M. Scott	X			
Results	10	0	1	0
Carried				

12.2 By-laws before Council for FIRST and SECOND reading which do not require more than a simple majority

12.2.1 By-law 2024-160 (Local Improvement) East Street

Moved by: Councillor A. Caputo

Seconded by: Councillor S. Hollingsworth

Resolved that By-law 2024-160 being a by-law to authorize the construction of Class “A” pavement on East Street from Bay Street to Wellington Street East under Section 3 of the

Municipal Act, 2001, Ontario Regulation 586/06 be passed in open Council this 2nd day of December, 2024.

Carried

- 12.3 By-laws before Council for THIRD reading which do not require more than a simple majority**
- 13. Questions By, New Business From, or Addresses by Members of Council Concerning Matters Not Otherwise on the Agenda**
- 14. Closed Session**
- 15. Adjournment**
- Moved by: Councillor R. Zagordo
Seconded by: Councillor S. Spina
Resolved that this Council now adjourn.

Carried

"Matthew Shoemaker"

Mayor

"Rachel Tyczinski"

City Clerk